

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                  |                                     |                                                       |                                    |                                 |
|---------------------------------------------------|------------------------------------------------------------------|-------------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Adriaan Denbroeder               | Team:<br>Squad #15                                               | CCRB Case #:<br>202102633           | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                  |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 12/02/2020 1:41 AM | Location of Incident:<br>Thornhill Avenue and Douglaston Parkway | 18 Mo. SOL<br>6/2/2022              | Precinct:<br>111                                      |                                    |                                 |
| Date/Time CV Reported<br>Wed, 04/28/2021 8:55 PM  | CV Reported At:<br>CCRB                                          | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 04/28/2021 8:55 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Dean Kekovski | 25768  | 938757 | 111 PCT |
| 2. POM Robert Geyer  | 19138  | 968440 | 111 PCT |

| Officer(s)            | Allegation                                                                                   | Investigator Recommendation |
|-----------------------|----------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Dean Kekovski | Abuse: Police Officer Dean Kekovski stopped the vehicle in which § 87(2)(b) was an occupant. |                             |
| B . POM Robert Geyer  | Abuse: Police Officer Robert Geyer stopped the vehicle in which § 87(2)(b) was an occupant.  |                             |
| C . POM Dean Kekovski | Abuse: Police Officer Dean Kekovski threatened § 87(2)(b) with the use of force.             |                             |
| D . POM Dean Kekovski | Abuse: Police Officer Dean Kekovski threatened to arrest § 87(2)(b)                          |                             |
| E . POM Dean Kekovski | Abuse: Police Officer Dean Kekovski issued a summons to § 87(2)(b)                           |                             |
| § 87(2)(g), § 87(4-b) |                                                                                              |                             |

## Case Summary

On April 28, 2021, § 87(2)(b) filed the following complaint with the CCRB call processing system.

On December 2, 2020, at approximately 1:41am, § 87(2)(b) drove his vehicle from his mother's house, located at § 87(2)(b) in Queens and turned right onto Douglaston Parkway. Two officers, PO Dean Kekovski and PO Robert Geyer of the 111<sup>th</sup> Precinct, observed § 87(2)(b) vehicle travelling at a high rate of speed. PO Kekovski stated he smelled the odor of marijuana coming from the vehicle. PO Kekovski pulled § 87(2)(b) over at the intersection of Thornhill Avenue and Douglaston Parkway in Queens. PO Kekovski and PO Geyer approached his vehicle (**Allegation A: Abuse of Authority—Vehicle Stop**, § 87(2)(g) **Allegation B: Abuse of Authority—Vehicle Stop**, § 87(2)(g) § 87(2)(b) operated the vehicle and his friends § 87(2)(b) and § 87(2)(b) rode with him as passengers. PO Kekovski requested § 87(2)(b) identification, registration, and license. § 87(2)(b) complied, giving PO Kekovski his identification, and searched for his insurance card on his phone.

While § 87(2)(b) looked for his insurance card, he and PO Kekovski argued about whether § 87(2)(b) had smoked marijuana prior to driving his vehicle, during which PO Kekovski stated, “you better relax my man before I rip you out of the car in two seconds and throw cuffs on you” (**Allegation C: Abuse of Authority—Threat of Force**, § 87(2)(g) **Allegation D: Abuse of Authority—Threat of Arrest**, § 87(2)(g) PO Kekovski then asks for § 87(2)(b) insurance card. § 87(2)(b) stated he was still looking for it. PO Kekovski then instructed § 87(2)(b) to “keep looking,” returned to his police vehicle, and issued § 87(2)(b) a summons for failing to present his insurance card (**Allegation E: Abuse of Authority—improper summons**, § 87(2)(g) § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

PO Kekovski and PO Geyer's Body Worn Cameras were activated and captured the incident (**Board Review 5, 6**).

## Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Dean Kekovski stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (B) Abuse of Authority: Police Officer Robert Geyer stopped the vehicle in which § 87(2)(b) was an occupant.**

It is undisputed that PO Kekovski stopped the vehicle in which § 87(2)(b) was the driver at approximately 1:41am on December 2, 2020. § 87(2)(b) stated in his CCRB interview (**Board Review 1**) that when he left his house, located at § 87(2)(b) in Little Neck, Queens, he was driving at the speed limit. PO Kekovski stated in his CCRB interview (**Board Review 2**) that he observed § 87(2)(b) travelling at a high rate of speed. PO Kekovski observed this as he operated his police vehicle, travelling at approximately 25 miles per hour. § 87(2)(b) vehicle came to his attention as it travelled in front of PO Kekovski and PO Geyer, and the distance between the police vehicle and § 87(2)(b) vehicle increased. PO Geyer stated in his CCRB interview (**Board Review 3**) that he observed § 87(2)(b) speeding himself and observed § 87(2)(b) accelerate as he turned from Alameda Avenue right onto Douglaston Parkway.

§ 87(2)(b) stated in his CCRB interview (**Board Review 1**) that PO Kekovski stated to him that he had been pulled over for speeding. § 87(2)(b) an occupant inside the vehicle, could not be

reached. The second passenger in the vehicle, § 87(2)(b) stated that he did not recall any incident occurring in December of 2020 with officers and § 87(2)(b) PO Kekovski, who initiated the stop, stated in his CCRB interview (**Board Review 2**) that he conducted the vehicle stop because he observed § 87(2)(b) travelling at a speed of approximately 35 miles per hour in an area with a 25 miles per hour speed limit. He and PO Geyer both stated in their CCRB interviews (**Board Review, 2, 3**) that they did not use any radar instruments to ascertain the speed of § 87(2)(b) vehicle. PO Kekovski's BWC footage (**Board Review 5**) shows that PO Kekovski informs § 87(2)(b) that he is being stopped for going 35 miles an hour. PO Geyer stated in his CCRB interview (**Board Review 3**) that at that time he was aware that PO Kekovski had initiated the vehicle stop due to § 87(2)(b) increase in speed PO Kekovski also stated in his CCRB interview (**Board Review 2**) that while travelling three car lengths behind § 87(2)(b) allegedly speeding vehicle, he smelled burning marijuana cigarettes. PO Kekovski stated that he "confirmed" the smell of marijuana after initiating the stop of § 87(2)(b) vehicle. PO Kekovski proceeded to issue § 87(2)(b) a summons for failing to present his insurance card.

NYPD Patrol Guide Procedure 209-01 (**Board Review 9**) outlines the offenses for which officers can issue summons in lieu of arrests when observing offenses. The procedure reads that officers can issue summonses for any violation listed under New York's Vehicle and Traffic Laws. PO Kekovski stated he observed § 87(2)(b) speeding and informed § 87(2)(b) he was being stopped for such. PO Kekovski ultimately issued § 87(2)(b) a summons for failing to provide insurance documentation (**Board Review 4**).

§ 87(2)(b) PO Kekovski did not issue § 87(2)(b) a summons for speeding and did not take any action with regard to the marijuana he stated he smelled, § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) PO Kekovski did not issue § 87(2)(b) a summons for speeding, nor did he measure § 87(2)(b) speed with a radar device, § 87(2)(g)

§ 87(2)(g)

**Allegation (C) Abuse of Authority: Police Officer Dean Kekovski threatened § 87(2)(b) with the use of force.**

According to PO Kekovski's Body Worn Camera footage (**Board Review 5**), he approached § 87(2)(b) vehicle on the driver's side and PO Geyer approached on the passenger side. PO Kekovski stated during his CCRB interview (**Board Review 2**) that as he interacted with § 87(2)(b) he acted in a combative fashion and was not compliant when responding to requests made by PO Kekovski. PO Kekovski stated in his CCRB interview (**Board Review 2**) that the two other occupants of the vehicle, § 87(2)(b) two friends, were attempting to gain his compliance throughout the interaction. PO Kekovski's BWC footage (**Board Review 5**) shows, however, that upon approaching the vehicle following the initiation of the vehicle stop, PO Kekovski asks § 87(2)(b) for his license and registration and § 87(2)(b) provides it. The footage shows that at timestamp 00:45, PO Kekovski requests to see § 87(2)(b) license. At timestamp 1:55, the footage shows PO Kekovski holding § 87(2)(b)

§ 87(2)(b) driver's license in his right hand.

PO Kekovski's BWC footage (**Board Review 5**) shows that § 87(2)(b) stated to PO Kekovski, "I got a medical marijuana card, the fuck you gonna do about it." PO Kekovski stated, "obviously you guys were posted up smoking weed," to which § 87(2)(b) responds in a raised voice, "I wasn't posted—I left my house!" PO Kekovski then states, "First of all, I don't know who you screaming at my man, you better relax before I rip you out of the car and throw cuffs on you." PO Kekovski stated in his CCRB interview (**Board Review 2**) that this statement meant that he was going to remove § 87(2)(b) from the vehicle for his own safety. PO Kekovski stated he used the word "rip" as opposed to a term such as "remove" because "rip" was "what came out at the time." PO Kekovski stated that he wanted to remove § 87(2)(b) from the vehicle for his own safety, as § 87(2)(b) was yelling and gesticulating by moving his arms up and down in front of his face.

NYPD Patrol Guide Procedure 221-01 (**Board Review 7**) outlines the use of force guidelines for NYPD members of service. The decision to use force depends on the totality of the circumstances, determined by eleven key factors including the actions taken by a subject, the duration of action and the immediacy of perceived threats, as well as the presence of a crowd or hostile agitators. Patrol Guide Procedure 221-01 further states that members of service must first use de-escalation techniques to reduce or eliminate the need for force.

§ 87(2)(g)  
PO Kekovski stated that the only infractions he had observed was § 87(2)(b) travelling at 35 miles per hour in a 25 miles per hour zone. § 87(2)(g)  
From the point that PO Kekovski first began to engage with § 87(2)(b) and when he threatened to "rip" him out of the vehicle, approximately two minutes and two seconds had elapsed. § 87(2)(g)

§ 87(2)(g)

**Allegation (D) Abuse of Authority: Police Officer Dean Kekovski threatened to arrest § 87(2)(b)**

It is undisputed that § 87(2)(b) vehicle smelled of marijuana. PO Kekovski stated during his CCRB interview (**Board Review 2**) that although the reason he pulled § 87(2)(b) over was for speeding as well as the smell of marijuana. § 87(2)(b) stated in his CCRB interview (**Board Review 1**) that he had a medical marijuana card. § 87(2)(b) stated that he did not smoke marijuana prior to driving the vehicle on the date of the incident, however he would often smoke it inside of his car. PO Kekovski stated in his interview (**Board Review 2**) that although he smelled marijuana prior to pulling § 87(2)(b) over, he ultimately decided to pull him over because § 87(2)(b) was speeding. Upon approaching the vehicle, PO Kekovski confirmed the odor of marijuana, but did not see any marijuana inside the vehicle

During the interaction, as discussed in **Allegation C**, according to his body worn camera footage



**(Board Review 5)** PO Kekovski stated, “you better relax before I rip you out of the car and throw cuffs on you.” PO Kekovski stated during his CCRB interview **(Board Review 2)** that § 87(2)(b) could have been arrested for either a refusal to comply with an officer’s request for identification or the odor of marijuana. PO Geyer stated in his CCRB interview **(Board Review 3)** that he interpreted PO Kekovski’s comments to mean that he was going to detain § 87(2)(b) and place him under arrest.

PO Kekovski’s body worn camera footage **(Board Review 5)** shows however, that PO Kekovski asks for § 87(2)(b) paperwork at timestamp 1:16 once. At timestamp 1:33, PO Kekovski stated § 87(2)(b) first name out loud, stating, § 87(2)(b). At timestamp 1:54, PO Kekovski’s body worn camera shows that he is holding an identification card in his right hand.

The legitimacy of PO Kekovski’s statement that he was going to “throw cuffs” depends on whether § 87(2)(b) could have been detained or arrested for either the odor of marijuana or if he had refused to show identification to PO Kekovski as PO Kekovski alleged.

NYPD Patrol Guide Procedure 208-01 regarding the law of arrest **(Board Review 8)** states that officers may lawfully make an arrest without a warrant when they have reason to believe that the person being placed under arrest committed that crime.

In People v. Chestnut, 43 A.D.2d 260 (1974) **(Board Review 10)**, the court ruled that the smell of marijuana is sufficient probable cause to permit police officers to search a person’s vehicle and its occupants. The court did not rule, however, that the smell of marijuana in and of itself is probable cause to arrest someone.

§ 87(2)(g) PO Kekovski stated in his CCRB interview **(Board Review 5)** that he did not see marijuana in the vehicle himself, as well as his Body Worn Camera footage showing that § 87(2)(b) was compliant in providing his identification. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

**Allegation (E) Abuse of Authority: Police Officer Dean Kekovski issued a summons to § 87(2)(b)**

PO Kekovski stated in his CCRB interview **(Board Review 2)** that he had initially pulled § 87(2)(b) vehicle over for going 35 miles per hour zone. During the course of his interaction with § 87(2)(b) PO Kekovski, according to his Body Worn Camera footage **(Board Review 5)**, asks § 87(2)(b) for documentation including his insurance card.

At timestamp 2:00 in PO Kekovski’s Body Worn Camera footage, PO Kekovski holds § 87(2)(b) identification in his hand. At timestamp 2:49, 49 seconds later, PO Kekovski states, “you got insurance or not?” § 87(2)(b) responds, “I’m looking.” PO Kekovski then states, “You’re looking, keep looking, I’ll be right back.” PO Kekovski then returns to his vehicle and issues § 87(2)(b) a summons for failing to present insurance documentation **(Board Review 4)**.

PO Kekovski stated in his CCRB interview **(Board Review 2)** that § 87(2)(b) informed him that he was looking on his phone for his insurance card. After PO Kekovski returned to § 87(2)(b) vehicle with the summons, § 87(2)(b) had his insurance card to show to the officer. PO Kekovski stated that

after hearing this, he stated to § 87(2)(b) “You shouldn’t argue with me next time show it to me.”

According to NYPD Patrol Guide Procedure 208-01 (**Board Review 8**) officers can arrest an individual without a warrant for offenses committed in their presence.

NYPD Patrol Guide Procedure 209-01 (**Board Review 9**) states that officers are permitted to issue summons as an alternative to arresting an individual for offenses including those listed in New York State Vehicle and Traffic Law.

§ 87(2)(g) PO Kekovski stated in his CCRB interview (**Board Review 2**) that he witnessed § 87(2)(b) travelling at a high rate of speed. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

### Civilian and Officer CCRB Histories

This is the first CCRB complaint to which § 87(2)(b) has been a party.

Police Officer Kekovski has been a member of service for 16 years and has been a subject in six CCRB complaints and 19 allegations, none of which were substantiated. § 87(2)(g)

Police Officer Geyer has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.

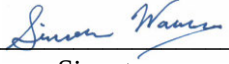
### Mediation, Civil, and Criminal Histories

As of July 20, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**Board Review 12**).

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

|               |                           |                        |                         |
|---------------|---------------------------|------------------------|-------------------------|
| Investigator: | <u>Adriaan Denbroeder</u> | <u>Inv. Denbroeder</u> | <u>October 19, 2021</u> |
|               | Signature                 | Print Title & Name     | Date                    |

|               |                                                                                          |                      |                 |
|---------------|------------------------------------------------------------------------------------------|----------------------|-----------------|
| Squad Leader: | <u></u> | <u>IM Simon Wang</u> | <u>10/19/21</u> |
|               | Signature                                                                                | Print Title & Name   | Date            |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |